

Court No. - 3

Case :- WRIT - C No. - 1963 of 2022

Petitioner :- Ram Dulare Paswan

Respondent :- The State Of U.P. And 4 Others

Counsel for Petitioner :- Adya Prasad Tewari

Counsel for Respondent :- C.S.C.

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

As prayed by learned counsel for the respondent Nos.2 and 3, **put up as a fresh case before the appropriate bench on 16.02.2022**, showing the name of Rishu Mishra as counsel for the respondent Nos.2 and 3.

In the meantime, learned counsel for the respondent No.3 shall obtain instructions.

Order Date :- 10.2.2022

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Court No. - 3

Case :- WRIT - C No. - 1963 of 2022

Petitioner :- Ram Dulare Paswan

Respondent :- The State Of U.P. And 4 Others

Counsel for Petitioner :- Adya Prasad Tewari

Counsel for Respondent :- C.S.C.,Rishu Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Ashutosh Srivastava,J.

Learned counsel for the petitioner and learned Standing Counsel for the State respondents are present but none appears for the Respondents No.2 & 3 even in the revised call.

Put up as a **fresh case** before the appropriate Bench on **16.05.2022.**

Order Date :- 7.5.2022

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Court No. - 3

Case :- WRIT - C No. - 1963 of 2022

Petitioner :- Ram Dulare Paswan

Respondent :- The State Of U.P. And 4 Others

Counsel for Petitioner :- Adya Prasad Tewari

Counsel for Respondent :- C.S.C., Rishu Mishra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, the learned standing counsel for the State-respondents and Mrs. Rishu Mishra, learned counsel for the respondent No.3.

This writ petition has been filed praying for the following relief:

"(i) issue a writ, order or direction in the nature of certiorari quashing impugned provisional assessment notice dated 03.12.2019 issued by the Executive Engineer Poorvanchal Vidyut Vitran Nigam Ltd. , Vidyut Vitran Khand Chauri Chaura, Gorakhpur as well as impugned demand citation dated 31.12.2021 issued by the Tehsildar Sadar, Gorakhpur (Contained in Annexure nos. 1 and 4 to the respectively writ petition).

(ii) issue a writ, order or direction in the nature of mandamus to stay recovery proceedings pursuant to demand citation dated 31.12.2021 issued by the Tehsildar, Sadar, Gorakhpur for recovery of electricity dues of 1,65, 207/- against the petitioner pursuant to ex-parte assessment order made by Executive Engineer (contained in Annexure no.4 to the writ petition)."

Mrs. Rishu Mishra, learned counsel for the respondent No.3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 24.5.2022

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